Agreement for Construction Services

Project ZB-2026-021 · Elm Street Clinic · 415 Elm Street, Westerville, OH 43081

Agreement date: 7 August 2026
Contractor: Zava Builders, 1200 Granite Way, Suite 400, Columbus, OH 43215
Project: Elm Street Clinic (ZB-2026-021)
Contract sum: $3,900,000 **Planned completion:** 23 April 2027

Recitals

This Agreement dated 7 August 2026 is made between the Owner and Zava Builders, general contractor, for Elm Street Clinic, project ZB-2026-021, at 415 Elm Street, Westerville, OH 43081.

Two-storey, 28,000 sq ft outpatient medical clinic with twelve exam rooms, an imaging suite with a shielded room, a ground-floor pharmacy, and surface parking. The Owner engages Zava Builders to execute the following stipulated-sum construction scope and coordinate its phase handovers.

Definitions

- Agreement: This executed construction agreement, its referenced drawings and specifications, the Schedule Record and subsequently accepted written change orders.
- Work: All construction, procurement, temporary measures, testing, coordination and closeout obligations necessary to deliver the project scope described in this Agreement.
- Phase: A numbered scope allocation with its designated vendor, fixed dates, cost and explicit predecessor, if any, as set out in Section 2 and the Schedule Record.
- Schedule Record: The controlling written record of phase dates and explicit dependencies; amendments require accepted written change orders and contractor coordination of dependent phases.
- Change Order: A written instrument identifying the contracted and changed work, additions and deletions, phase-specific calendar-day adjustment and Contract Sum adjustment accepted by the authorised parties.
- Owner: The commissioning party executing this Agreement through its authorised signatory; trade vendors are subcontracting participants and are not parties signing this Agreement.

1. The Work

Zava Builders shall furnish and coordinate labour, materials, equipment, supervision, permits, inspection attendance and closeout documentation necessary to deliver Elm Street Clinic for the Owner in accordance with this Agreement. Particular coordination obligations concern clinical cleanability, imaging shielding continuity and exam-room interfaces.

The contract documents comprise this Agreement, the approved civil, structural, architectural and trade drawings referenced below, the specifications and the Schedule Record. Referenced standards

establish material and workmanship requirements; applicable adopted code requirements govern where more stringent. Resolve inconsistent dimensions and requirements by written request to the Owner before affected work proceeds.

- Protect adjoining property, existing services, survey controls and accepted work; provide temporary access, barriers and housekeeping throughout construction.
- Quantities stated in the phase descriptions are approximate scope allowances for this stipulated-sum Agreement; final installed dimensions follow the approved drawings, and scope alterations require a written change order.
- Maintain coordinated record drawings and inspection records by phase; include required testing and correction of nonconforming work in the stated phase allocations.

2. Scope of Work by Phase

Phase	Vendor	Depends on	Start	End	Cost
1 · Site work and foundations	Contoso Concrete	—	7 September 2026	30 October 2026	$620,000
2 · Structural frame	Northwind Structures	—	5 October 2026	11 December 2026	$1,050,000
3 · Concrete floors and slabs	Contoso Concrete	Phase 1	9 November 2026	15 January 2027	$760,000
4 · Interior build-out	Wingtip Interiors	Phase 3	25 January 2027	19 March 2027	$1,120,000
5 · Fit-out and furniture	Litware Workplace	Phase 4	29 March 2027	23 April 2027	$350,000

Phase 1 · Site work and foundations — Contoso Concrete

Contoso Concrete shall perform Site work and foundations from 7 September 2026 through 30 October 2026 for $620,000; this phase shall prepare the clinic footprint and surface-parking formation with coordinated imaging and pharmacy foundation interfaces.

Work items

- Establish survey controls for the 28,000 sq ft clinic floor-area layout and surface-parking limits to C-101 and S-101.
- Strip approximately 900 cubic yards of topsoil and maintain temporary sediment controls to C-102.
- Excavate approximately 2,100 cubic yards for clinic footings, grade beams and service pits to S-101 and S-102.
- Place approximately 1,300 cubic yards of engineered fill in maximum 8 inch loose lifts to C-103 and ASTM D1557.
- Cast approximately 720 cubic yards of 4,000 psi reinforced foundation concrete to S-103 and ACI 318.
- Install approximately 650 linear feet of foundation drainage with filter fabric and washed stone to C-301.

- Set approximately 80 anchor-rod groups for the clinic frame to S-104 and ASTM F1554.
- Coordinate foundation sleeves serving the imaging suite and ground-floor pharmacy to S-105 and P-101.
- Grade approximately 3,200 sq yd of parking subbase and maintain accessible entrance approach levels to C-401 and ICC A117.1.

Materials and standards

- Structural fill shall be well-graded crushed aggregate free of organics, classified by ASTM D2487 and compacted to at least 95% of ASTM D1557 maximum dry density.
- Foundation concrete shall have 4,000 psi specified compressive strength, ASTM C150 cement and ASTM C33 aggregates; reinforcement shall be ASTM A615 Grade 60 under ACI 318.
- Foundation drain shall use nominal 4 inch perforated PVC meeting ASTM D2729 with nonwoven filter fabric and washed drainage stone.
- Anchor rods shall be ASTM F1554 Grade 55 with compatible nuts, washers and templates; exposed finishes shall follow S-104.

Submittals, testing and inspection

- Submit earthwork methods, foundation reinforcing shop drawings and concrete mix designs to Zava Builders for Owner review before placement.
- Have the independent testing agency witness bearing surfaces and perform ASTM D6938 field density tests; Zava Builders shall witness failed-area retests before covering.
- Have the independent testing agency sample fresh concrete under ASTM C172, measure slump under ASTM C143 and make ASTM C31 specimens for ASTM C39 strength tests.
- Submit anchor-rod survey records and footing inspection releases, witnessed by Zava Builders and the Owner's representative, before backfill.

Exclusions

- Structural steel and deck erection belong to Structural frame.
- Floor slab placement and floor finishing belong to Concrete floors and slabs.

This phase has no predecessor in the Schedule Record; it may begin on its fixed start subject to notice to proceed and safe release of its work area.

Phase 2 · Structural frame — Northwind Structures

Northwind Structures shall perform Structural frame from 5 October 2026 through 11 December 2026 for $1,050,000; this phase shall provide the two-storey clinic skeleton, imaging equipment support interfaces and roof framing.

Work items

- Fabricate and erect approximately 240 tons of structural steel for the two-storey clinic to S-201 through S-203 and AISC 360.
- Install approximately 14,000 sq ft of elevated composite floor deck to S-301 and ASTM A653.
- Install approximately 14,000 sq ft of roof deck with scheduled fasteners and perimeter closures to S-302.
- Provide imaging-suite beam reinforcement and equipment support framing only as detailed on S-204.
- Frame two stair assemblies and landing supports to S-401 and AISC 303.

- Install shaft and service-opening trimmers serving the twelve exam rooms and pharmacy routes to S-205.
- Provide approximately 420 linear feet of perimeter edge angles and curtain support steel to S-402.
- Install bracing connections and pretension high-strength bolts to S-501 and the RCSC Specification for Structural Joints Using High-Strength Bolts.
- Survey frame plumbness and equipment support elevations to S-601 and AISC 303 before releasing supported work.

Materials and standards

- Wide-flange members shall be ASTM A992; hollow structural sections shall be ASTM A500 Grade C, detailed under AISC 360.
- Connection plates shall be ASTM A36 unless a higher grade is scheduled; bolts shall meet ASTM F3125 Grade A325 with matching nuts and hardened washers.
- Floor and roof deck shall be galvanised ASTM A653 steel of the profile and base-metal thickness scheduled on the structural drawings.
- Shop and field welds shall conform to AWS D1.1; fabrication and erection tolerances shall conform to AISC 303.

Submittals, testing and inspection

- Submit member shop drawings, connection calculations, erection bracing and deck fastening plans for review by the Owner's structural reviewer through Zava Builders.
- Provide mill certificates and bolt lot certificates before erection; the independent special inspector shall verify member identification and connection materials.
- Have the independent special inspector witness bolt pretension verification and inspect welds under AWS D1.1, including nondestructive examination where the structural inspection schedule requires it.
- Submit signed alignment surveys, deck fastening inspection records and corrected connection reports for Owner and Zava Builders acceptance.

Exclusions

- Concrete topping and ground-bearing slabs belong to Concrete floors and slabs.
- Imaging-room shielding and clinical room finishes belong to Interior build-out; primary equipment-support steel remains in this phase.

This phase has no predecessor in the Schedule Record; it may begin on its fixed start subject to notice to proceed and safe release of its work area.

Phase 3 · Concrete floors and slabs — Contoso Concrete

Contoso Concrete shall perform Concrete floors and slabs from 9 November 2026 through 15 January 2027 for $760,000; this phase shall provide clean, dimensionally controlled clinic floor substrates, including the detailed imaging equipment recesses.

Work items

- Prepare approximately 14,000 sq ft of ground-floor slab base with nominal 6 inch compacted aggregate to S-105.
- Install a nominal 15 mil vapor retarder below ground-bearing clinic slabs to S-105 and ASTM E1745.

- Place approximately 28,000 sq ft of 4,000 psi reinforced floor concrete across the two clinic levels to S-301 and S-302 and ACI 318.
- Provide nominal 5 inch ground-bearing slab and elevated slab thicknesses as scheduled on S-301 and S-302.
- Form approximately 600 sq ft of imaging equipment recesses and support-pad interfaces to S-303 and the approved equipment coordination details.
- Coordinate service penetrations serving twelve exam rooms and the ground-floor pharmacy to S-304 and P-201.
- Sawcut ground-floor contraction joints on nominal 15 ft panels, avoiding equipment anchor zones shown on S-305.
- Steel-trowel the clinical floor substrates and cure to ACI 302.1R and ACI 308.1 without incompatible residual curing films.
- Test floor moisture and surface readiness before clinical flooring installation to ASTM F2170 and ASTM F710.

Materials and standards

- Floor concrete shall be 4,000 psi normal-weight concrete with ASTM C150 cement and ASTM C33 aggregate, proportioned under ACI 301.
- Reinforcing bars shall be ASTM A615 Grade 60; welded wire reinforcement, where detailed, shall meet ASTM A1064.
- Below-slab vapor retarder shall be nominal 15 mil ASTM E1745 Class A with compatible sealed joints and penetrations.
- Joint sealant shall meet ASTM C920; curing materials and finish treatments shall be compatible with the scheduled final floor system under ACI 308.1.

Submittals, testing and inspection

- Submit placement plans, mix designs, reinforcement shops, curing method and finish samples through Zava Builders to the Owner before slab placement.
- Have the independent testing agency measure slump to ASTM C143, air content to ASTM C231 and strength using ASTM C31 specimens tested under ASTM C39; Zava Builders shall witness sampling.
- Submit joint layout surveys and finish acceptance records to Zava Builders and the Owner before releasing the surfaces to following trades.
- Have the independent testing agency document ASTM F2170 moisture results where resilient flooring is scheduled and report substrate readiness to the Owner's representative.

Exclusions

- Foundation earthwork and footing concrete belong to Site work and foundations.
- Resilient flooring, partitions and ceiling finishes belong to Interior build-out.

This phase depends on Phase 1, Site work and foundations, and cannot begin until that predecessor is accepted as complete.

Phase 4 · Interior build-out — Wingtip Interiors

Wingtip Interiors shall perform Interior build-out from 25 January 2027 through 19 March 2027 for $1,120,000; this phase shall complete clinical rooms, the shielded imaging enclosure and pharmacy finishes after floor acceptance.

Work items

- Frame partitions for twelve exam rooms and associated clinical circulation to A-201 and ASTM C754.
- Install nominal 5/8 inch gypsum board with washable finish substrates to A-501 and ASTM C840.
- Construct approximately 1,400 sq ft of shielded imaging-room wall and ceiling surface with lead thickness and overlaps strictly to the approved shielding schedule on A-502.
- Provide shielded door, frame and service-penetration continuity details to A-503 and ASTM B749 lead sheet requirements.
- Install approximately 45 clinic and pharmacy door and hardware sets to A-701 and NFPA 80 where rated.
- Lay approximately 25,000 sq ft of cleanable resilient flooring with welded seams and nominal 6 inch integral coved bases to A-601 and ASTM F1303.
- Install approximately 24,000 sq ft of washable ceiling assemblies to A-602 and ASTM C636.
- Apply washable coatings and seal finish junctions in exam rooms and pharmacy spaces to A-603 and ASTM D2486 performance criteria.
- Provide approximately 120 linear feet of exam-room casework backing and preserve imaging equipment access clearances to A-504.

Materials and standards

- Non-loadbearing steel studs shall meet ASTM C645; gypsum board shall meet ASTM C1396 with Type X board in the specified rated assemblies.
- Acoustic insulation shall be ASTM C665 mineral fiber; perimeter sealants shall meet ASTM C920 and rated firestop systems shall have ASTM E814 test evidence.
- Suspended ceiling grids shall meet ASTM C635 and be installed to ASTM C636; panel properties shall match the room finish schedule.
- Resilient flooring shall meet ASTM F1303; washable coatings shall have ASTM D2486 scrub-resistance data and substrate preparation shall follow ASTM F710 where flooring is applied.
- Imaging shielding shall use ASTM B749 lead sheet with thickness, backing and overlap dimensions set by the approved shielding design; penetrations shall preserve that design.

Submittals, testing and inspection

- Submit partition shops, rated-assembly listings, reflected ceiling coordination and finish samples to Zava Builders for Owner approval.
- Have Zava Builders and the Owner's representative inspect backing, firestops and above-ceiling work before concealment; record deficiencies and closure evidence.
- Construct a representative room finish mockup and have the Owner witness cleanability, door operation and accessible clearances before repetitive installation.
- Submit substrate moisture records and flooring adhesion checks required by the approved product instructions before area acceptance.
- Submit shielding shop drawings and have the Owner-designated shielding specialist witness continuity inspection before closure and the completed enclosure acceptance survey.

Exclusions

- Structural slab placement and curing belong to Concrete floors and slabs.
- Movable furniture and scheduled exam-room or workplace casework belong to Fit-out and

furniture.

This phase depends on Phase 3, Concrete floors and slabs, and cannot begin until that predecessor is accepted as complete.

Phase 5 · Fit-out and furniture — Litware Workplace

Litware Workplace shall perform Fit-out and furniture from 29 March 2027 through 23 April 2027 for $350,000; this phase shall fit the twelve exam rooms and furnish waiting, staff and pharmacy spaces after clinical interiors are accepted.

Work items

- Supply twelve exam-room casework sets from the specified original laminate casework line, with an 8-week procurement lead time, to A-801 and ANSI/AWI 0641.
- Install approximately 120 linear feet of nominal 24 inch deep exam-room base cabinets in the approved room configurations to A-802 and ANSI/AWI 0641.
- Provide approximately 120 linear feet of nominal 25 inch deep solid-surface countertops with sealed splash junctions to A-803 and ANSI/ICPA SS-1.
- Provide adjustable concealed hinges, cleanable pulls and scheduled drawer hardware for all twelve exam-room sets to A-804 and ANSI/BHMA A156.9.
- Install approximately 48 waiting-room seats with cleanable upholstery to A-805 and ANSI/BIFMA X5.4.
- Supply approximately 18 staff workstations and task chairs to A-806 and ANSI/BIFMA X5.5 and X5.1.
- Install approximately 24 linear feet of pharmacy furniture and storage to A-807 and ANSI/AWI 0641.
- Provide imaging-suite support furniture outside equipment clearance zones to A-808 and the approved equipment access plan.
- Anchor fixed casework, seal cleanable junctions and verify accessible approach clearances to A-809 and ICC A117.1.

Materials and standards

- Casework shall conform to ANSI/AWI 0641 with high-pressure decorative laminate meeting the applicable ANSI/NEMA LD 3 grade for the scheduled surfaces.
- Work surfaces shall use sealed edges, moisture-resistant cores where scheduled and hardware meeting ANSI/BHMA A156.9.
- Task chairs shall have ANSI/BIFMA X5.1 performance documentation; tables and desks shall have ANSI/BIFMA X5.5 documentation.
- Storage units shall have ANSI/BIFMA X5.9 documentation; lounge and waiting seating shall have ANSI/BIFMA X5.4 documentation.
- Exam-room countertops shall be solid-surface material meeting ANSI/ICPA SS-1; the original specified casework laminate, cores and edge seals shall match the approved clinical finish schedule.

Submittals, testing and inspection

- Submit dimensioned casework and furniture layouts, finish samples, anchorage details and product performance certificates to Zava Builders for Owner approval.
- Field-measure completed rooms and service positions with Zava Builders before fabrication release;

record discrepancies against the approved layouts.

- Have the Owner's representative and Zava Builders witness a representative installed furniture group, accessible clearances, anchorage and moving-part operation.
- Deliver itemised inventories, care instructions and warranty certificates with a jointly witnessed room-by-room punch list.

Exclusions

- Clinical or office partitions, flooring and casework backing belong to Interior build-out.
- Structural slab preparation and concrete placement belong to Concrete floors and slabs.

This phase depends on Phase 4, Interior build-out, and cannot begin until that predecessor is accepted as complete.

3. Schedule

Planned completion of Elm Street Clinic is 23 April 2027, the latest phase end in the Schedule Record. Phase dates are fixed in the Schedule Record and change only by written change order.

Sequence the Work to protect clinical cleanability, imaging shielding continuity and exam-room interfaces. The dependency statements in Section 2 reproduce the agreed predecessor relationships; a later completion of one independent activity does not automatically amend another activity's dates.

- The Owner shall issue written notice to proceed before site mobilisation; the notice does not alter any phase date fixed in the Schedule Record.
- Float is a shared project resource administered by Zava Builders for the benefit of timely completion; use of float alone creates no entitlement to additional compensation.
- Ordinary seasonal weather is included in the fixed dates; exceptional weather requires contemporaneous daily records, prompt written notice and an accepted written change order for any time adjustment.
- Phase acceptance requires inspection releases, corrected defects affecting follow-on work and written acceptance by Zava Builders with the Owner; progress payment alone does not establish acceptance.
- Only the expressly listed predecessor governs a phase dependency; safe work-area releases and inspection hold points remain mandatory for concurrent activities without creating additional Schedule Record links.
- Liquidated damages are $1,500 per calendar day of unexcused delay beyond the contract completion date, as adjusted by accepted written change order; the parties agree this is a reasonable estimate of delay-related administrative and occupancy costs.

4. Contract Sum and Payment

The Owner shall pay Zava Builders the stipulated contract sum of three million nine hundred thousand dollars ($3,900,000), equal to the sum of all phase allocations in the schedule of values below.

Submit monthly progress payment applications identifying completed work by phase, properly stored materials supported by title and insurance evidence, prior payments and approved changes. The Owner shall review quantities, inspection records and supporting invoices and pay approved amounts monthly, subject to retainage of 5% from each approved progress amount.

Release retainage only after final acceptance, correction of outstanding deficiencies, delivery of warranties and record documents, and evidence of payment of subcontractors and suppliers. Payment does not waive defective work or replace written phase acceptance.

- Phase 1, Site work and foundations: $620,000.
- Phase 2, Structural frame: $1,050,000.
- Phase 3, Concrete floors and slabs: $760,000.
- Phase 4, Interior build-out: $1,120,000.
- Phase 5, Fit-out and furniture: $350,000.

5. Changes in the Work

A written change order shall identify the affected phase and describe the Work as contracted and as changed, separately stating added work, deleted work and unchanged adjacent work. It shall state the change in that phase's scheduled duration in calendar days, with the reason and sequencing basis, and the change in the Contract Sum, including a zero adjustment where appropriate.

Each change order shall show the original Contract Sum, the net change by previously accepted change orders, the Contract Sum before this change order, the amount of this change order and the new Contract Sum. Supporting cost detail shall distinguish labour, materials, equipment and applicable credits; the accepted amount includes overhead and profit.

The Owner and Zava Builders shall authorise changes in writing; a vendor submission becomes binding only upon authorised acceptance. Zava Builders shall confirm Owner authorisation before accepting a vendor change that amends this Agreement. No oral direction changes the Contract Sum or phase dates.

After acceptance, Zava Builders shall adjust dependent phases in the Schedule Record in accordance with the stated dependencies and notify their vendors in writing. A phase-specific extension is recorded once against its identified phase; resulting predecessor effects are assessed through the Schedule Record rather than assigned as duplicate extensions.

- Preserve the original scope and schedule basis with each accepted change order and retain supporting quantities and approvals.
- Proceed with unaffected work while a change is under review, subject to safe access and the existing inspection hold points.

6. General Conditions

The following conditions apply to all Work at Elm Street Clinic, including coordinated attendance during turnover.

- Maintain commercial general liability insurance of $2,000,000 per occurrence and $4,000,000 aggregate, automobile liability of $1,000,000 combined single limit, statutory workers compensation and employers liability of $1,000,000; provide certificates before mobilisation and name the Owner as additional insured where applicable.
- Furnish performance and payment bonds each in the amount of 100% of the Contract Sum, with adjustments for accepted changes; maintain the bonds through the required completion and payment obligations.

- Warrant materials and workmanship for one year from documented substantial completion, promptly correct covered defects on written notice and transfer longer product warranties to the Owner.
- Zava Builders shall direct site safety, implement OSHA construction safety requirements, maintain fall protection, excavation protection and controlled access, and coordinate the safety responsibilities of all trades.
- Substantial completion requires lawful occupancy or intended use, required inspections and operational life-safety systems; final completion requires all corrective work, record documents, training, warranties and final payment releases accepted by the Owner.
- Resolve disputes first through documented discussions between authorised representatives, then mediation; unresolved claims may be brought in a court of competent jurisdiction, while undisputed safe work continues.
- Ohio law governs this Agreement and its interpretation, subject to applicable mandatory public-works requirements and the approved permits.
- Send contractual notices in writing to the Owner through its authorised signatory and to Zava Builders, attention Robert Okonkwo, Director of Preconstruction and Contracts, at 1200 Granite Way, Suite 400, Columbus, OH 43215; retain evidence of receipt and identify the project and affected phase.

7. Signatures

Executed for Zava Builders by Robert Okonkwo, Director of Preconstruction and Contracts. Signature: _____. Date: _____.

Executed for the Owner by its authorised signatory. Name and title: _____. Signature: _____. Date: _____.

For the Contractor Robert Okonkwo, Director of Preconstruction and Contracts Zava Builders	For the Owner Authorised signatory Date

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